

EVENT > SUN SUED OVER JAVA

Kodak vs Sun Microsystems

Three numbers 5,206,951, 5,421,012 and 5,226,161, caused quite a stir in the IT industry. These were patents which Kodak acquired from Wang Laboratories and subsequently used to sue Sun Microsystems. Kodak dragged Sun to court, alleging patent infringements and looking for US \$1 billion in damages. The claim-Java, the programming language so vital to Sun's financial health, was violating the aforementioned patents.

Sun and Kodak, settled out of court for US \$92 million this year, a far cry from damages sought but the real damage was already done-in the guise of seeding fear amongst Java users.

Most importantly, this event underscored the absurdity of the new patent regime. As analyst and IT advisor Jonathan Eunice stated in a report, "The patents reference specific concepts...that are clearly part of Java. But the patents seem to equally describe the execution environment of just about every modern programming language, operating system, (database) engine, messaging broker and application server." He opined that "It is not much of an overstatement...to characterize Kodak's patents as claiming the ownership of the entire concept of delegation."

As Sun's Jonathan Schwartz posted in his blog, "Was it worth having this suit hang over our heads, no. Absolutely not. That's why we settled-not to validate Kodak, not to validate those patents, but to let our customers and employees and stockholders focus on market opportunity, not litigation."

Will his be the future of the IT industry? Money exchanged over the knife-point of questionable patents?

PEOPLE > STEVE JOBS

The Man With The Midas Touch

The co-founder and CEO of Apple Computer, the founder of Pixar animation studio, Steve Jobs is well-respected as a practical visionary-one who sees inherent trends and benefits within systems and technologies which may not be readily apparent, and then uses his insights to amazing results. Born February 24, 1955 Jobs and his friend Steve Wozniak founded Apple Computer in 1976 and gave the computing world the highly successful Apple II and Apple Macintosh. He left Apple in 1985 to found NeXT Computer, come 1986 he purchased Pixar from LucasFilm (George Lucas was more than happy over the US \$10 million sale, seeing how Pixar was then bleeding money) and turned it into the highly successful animation studio that it is today. A floundering Apple Computer purchased NeXT for US \$402 million in 1996 and got back Jobs to his roots. The next year, Steve became the interim CEO and spearheaded the revival of Apple.

Under Steve's guidance, Apple enjoyed healthy sales of the iMac which was a design revolution, spawning an industry of translucent look-alikes and copy-cat product-names beginning with the letter "i". Appealing design and branding became the hallmark of Apple Computer since, culmi-



Listed by The Guinness Book of World Records as the "Lowest Paid Chief Executive Officer", Steve Jobs is a man who has spawned multiple empires



nating into the hugely successful iPod-as of October 2004, the iPod has over 92 per cent of the market share for hard drive-based players and over 65 per cent of the market for portable music players in general. Today, iPods sell more than Apple desktops, laptops or servers; they are largely responsible for the financial good-health that Apple Computer is enjoying.

The iPod portable music player birthed the iTunes Music Store-an online music store dealing with all five major labels, viz., BMG Music, EMI, Sony Music, Universal and Warner Bros. The store offers singles for US \$0.99 and albums for US \$9.99. It sold about 2,75,000 tracks in its first 18 hours and more than 1,000,000 tracks in its first week. This runaway success, at a stroke silenced critics of online music distribution, and simultaneously legitimised the medium. Sony and Microsoft quickly followed with their own offerings but Apple remains the dominant player.

Design has been the strength of Apple under Steve Jobs. The simplicity of the iPod scroll wheel, the integration of the iTunes software and the online store, the elegance and usability of Mac OS X, the minimalist Apple hardware; all underline the importance of design. Steve Jobs is a man equally adored and hated but as the conductor of some of the most memorable products of our time, his visions deserve a healthy round of appreciation.

TREND > INTELLECTUAL PROPERTY AND SOFTWARE PATENTS

The Destructive Force Of Software Patents

Meant to protect intellectual property, software patents, are increasingly seen as weapons in the arsenal of huge companies used to either slow down or halt the progress of rival technologies. So much so, that companies are bought and sold based solely on the number of software patents that own.

Consider a recent visit to Singapore by the CEO of Microsoft, Steve Ballmer.

First, some background intel: Singapore's Ministry of Defense, switched 20,000 personal computers to run on Open Source software. The Chinese government sees the made-in-USA Windows as a potential security threat and is allied with Japan and South Korea to develop a Linux-based OS. Asia, in particular is a huge supporter of GNU/Linux and the Open Source way.

During the visit, Steve warned Asian governments that they could face intellectual rights-infringement lawsuits for using Open Source operating platforms such as Linux. The ammo for the attack? Software patents- Ballmer said that Linux violated more than 228 of them. He did not provide any detail on the alleged violations, which the Linux community disputes. "Someday, for all countries that are entering the WTO, somebody will come and look for money owing to the rights for that intellectual property," he threatened.

Software patents have created an atmosphere of mistrust. So much so, that seemingly well-intended solutions, such as Microsoft's Sender ID are experiencing friction to adoption due to